

04-VACATE-663 SOURCE ARCHIVE (MARKDOWN LISTINGS)

Case No. CGC-25-631801

801-APPEAL/04-VACATE-663/source/*.md

01-NOTICE-OF-INTENTION-VACATE

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title: "Notice of Intention to Move to Vacate Judgment / Order and Enter a Different Judgment / Order"
case: CGC-25-631801
authority: "Code Civ. Proc. 663, 663a"
deadline_rule: "Within fifteen (15) days after service of notice of entry of judgment / order (CCP 663a(a)(2))
, or earlier limit per statute"
filing_date_target: TBD
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# NOTICE OF INTENTION TO MOVE TO VACATE AND ENTER A DIFFERENT JUDGMENT / ORDER

<!-- BLOCK 1: NOTICE OF INTENTION
    CCP 663 motion is a "no new evidence" motion: the moving party challenges the
    LEGAL BASIS of the existing judgment / order on the existing record and asks
    the court to enter a DIFFERENT judgment / order based on facts already found
    or undisputed. NO new evidence is presented. (Forman v. Knapp Press (1985)
    173 Cal.App.3d 200.)
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## TO THE COURT, THE CLERK, AND ALL PARTIES AND COUNSEL OF RECORD:

**PLEASE TAKE NOTICE** that Plaintiff Franciscus Dylan Rosario hereby gives notice of intention to move under
    **Code of Civil Procedure section 663** to vacate the Court's May 12, 2026 order granting defendants'
    special motion to strike the First Amended Complaint (see [10210043.pdf](../../10210043.pdf) lines
    132-135) and to enter a **different** order in its place.

## CHALLENGED LEGAL BASIS (CCP 663, 1st clause)
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The legal basis(es) of the May 12, 2026 order being challenged as ****incorrect or inconsistent with the facts found and the record**** include, without limitation:

- ****Prong-one analysis**** at [10210043.pdf](../../10210043.pdf) lines 38-78 (gravamen / "wrong complained of" application).
- ****Prong-two analysis**** at [10210043.pdf](../../10210043.pdf) lines 81-117 ("really a non-cognizable claim based on intrinsic fraud").
- ****Civil Code 47(b) privilege**** application at [10210043.pdf](../../10210043.pdf) lines 118-131 (ancillary monetary relief characterization).
- ****Disposition / scope**** at [10210043.pdf](../../10210043.pdf) lines 132-135 (FAC stricken in its entirety).

<!-- TODO: refine each challenged legal basis to the specific text of the order. -->

DIFFERENT JUDGMENT / ORDER REQUESTED (CCP 663, 2nd clause)

The ****different**** judgment / order to be entered in place of the existing order is set forth in plaintiff's ****[Proposed] Different Order**** filed concurrently herewith (see 05-PROPOSED-ALTERNATIVE-ORDER.md).

NO NEW EVIDENCE

This motion is made ****on the existing record****. ****No new evidence**** is offered or relied upon. (See **Forman v. Knapp Press** (1985) 173 Cal.App.3d 200; CCP 663 limits the motion to a re-application of law to facts already in the record.)

****Cross-references:****

- Source order: [10210043.pdf](../../10210043.pdf)
- Minutes parse: [COURT-OFFICIAL/CGC-25-631801/minutes/10210043-PARSED.md](../../COURT-OFFICIAL/CGC-25-631801/minutes/10210043-PARSED.md)

02-MEMORANDUM

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title: "Memorandum of Points and Authorities ISO Motion to Vacate (CCP 663)"
case: CGC-25-631801
authority: "Code Civ. Proc. 663; CRC 3.1113"
deadline_rule: "Filed and served within CCP 663a windows"
filing_date_target: TBD
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# MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION TO VACATE (CCP 663)

<!-- BLOCK 2: MEMORANDUM
    Sections I-V keyed to the four challenged legal bases plus prejudice /
    "different order" justification. NO new evidence; argument runs entirely
    on the existing record (Forman v. Knapp Press (1985) 173 Cal.App.3d 200).
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## I. INTRODUCTION

<!-- TODO: 1-page summary; emphasize CCP 663 is a "different judgment" remedy
    on the existing record, distinct from new-trial (657) and reconsideration
    (1008). Cite Forman. -->

## II. LEGAL STANDARD UNDER CCP 663

<!-- TODO:
    - Two clauses: (a) incorrect or erroneous legal basis not consistent with
      or supported by the facts; and (b) different judgment available on the
      existing record.
    - No new evidence. Forman v. Knapp Press (1985) 173 Cal.App.3d 200.
    - Standard of review on appeal of CCP 663 ruling.
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## III. THE CHALLENGED LEGAL BASES OF THE MAY 12, 2026 ORDER
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<!-- TODO: subsections III.A-III.D mirror the four anchors in
01-NOTICE-OF-INTENTION-VACATE.md (prong one, prong two, privilege,
disposition). Each subsection: (i) what the order ruled (verbatim quote
with line cite to 10210043.pdf), (ii) why that legal basis is incorrect
or inconsistent with the existing record. -->

### III.A. Prong-one analysis (10210043.pdf lines 38-78)
<!-- TODO -->

### III.B. Prong-two analysis (10210043.pdf lines 81-117)
<!-- TODO -->

### III.C. Civil Code 47(b) privilege (10210043.pdf lines 118-131)
<!-- TODO -->

### III.D. Disposition / scope (10210043.pdf lines 132-135)
<!-- TODO -->

## IV. THE DIFFERENT ORDER AVAILABLE ON THE EXISTING RECORD

<!-- TODO: tie to 05-PROPOSED-ALTERNATIVE-ORDER.md; explain why each component
of the proposed different order is supported by facts already in the
record without need for new evidence. -->

## V. CONCLUSION AND RELIEF REQUESTED

<!-- TODO: vacate May 12 order; enter the proposed different order filed
concurrently. -->

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**Cross-references:**

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- Source order: [10210043.pdf](../../10210043.pdf) (prong-one 38-78; prong-two 81-117; privilege 118-131; disposition 132-135)
- Companion notice of intention: 01-NOTICE-OF-INTENTION-VACATE.md
- Companion proposed different order: 05-PROPOSED-ALTERNATIVE-ORDER.md

05-PROPOSED-ALTERNATIVE-ORDER

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title: "[Proposed] Different Order to Be Entered Upon Vacatur"
case: CGC-25-631801
authority: "Code Civ. Proc. 663"
deadline_rule: "Lodged with the moving papers"
filing_date_target: TBD
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# [PROPOSED] DIFFERENT ORDER (CCP 663)

<!-- BLOCK 3: ALTERNATIVE / "DIFFERENT" PROPOSED ORDER

The CCP 663 proposed order must be a different judgment / order than the
one being vacated, and it must be available on the existing record (no
new evidence). It is NOT a redline of defense's CRC 3.1312 proposed
order; that goes in 01-OBJECTIONS-PROPOSED-ORDER. This order is plaintiff's
fully-formed alternative ruling on the same record.

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The Court, having considered Plaintiff's Notice of Intention to Move to Vacate, the supporting Memorandum, the
existing record (including the May 12, 2026 minute order at [10210043.pdf](../../10210043.pdf)), and
the briefing on defendants' special motion to strike, and good cause appearing, VACATES the May 12,
2026 order and ENTERS THE FOLLOWING DIFFERENT ORDER:

1. Defendants' special motion to strike the First Amended Complaint under Code of Civil Procedure section
425.16 is DENIED (or GRANTED IN PART AND DENIED IN PART as set forth below).

2. <!-- TODO: prong-one finding consistent with the existing record. -->
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"PLAINTIFF'S NOTICE OF INTENTION TO MOVE TO VACATE AND ENTER A
DIFFERENT JUDGMENT / ORDER; MEMORANDUM OF POINTS AND AUTHORITIES;
[PROPOSED] DIFFERENT ORDER (Code Civ. Proc. 663, 663a)"

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<!-- TODO: complete from ../../shared/PROOF-OF-SERVICE-TEMPLATE.md. -->

****Cross-references:****

- Source order: [10210043.pdf](../../10210043.pdf)